FIRST AMENDMENT AND AGREEMENT

THIS FIRST AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 11th November 2021 (the "**Effective Date**"), by and among:

1. CrossBoundary Energy (SL) Limited ("System Owner") incorporated in Sierra Leone, having its registered address at: 26 Main Motor Road, Brookfields, Freetown, Sierra Leone

2. Miro Forestry (SL) Limited ("Customer") incorporated in Sierra Leone, having its registered address at: C/O Ibrahim Kargbo, 11 Missiri Street, Makeni, Bombali District, Northern Province, Sierra Leone; and

3. Miro Forestry Developments Limited ("Payee") incorporated in the United Kingdom, having its registered address at The St Botolph Building, 138 Houndsditch, London EC3A 7AR, United Kingdom.

Hereinafter referred individually as each a "**Party**" and together, the "**Parties**."

RECITALS

A. The Payee, the System Owner and the Customer entered into a Solar Services Agreement ("**SSA**") dated on or about 10th December 2020 providing for the design, construction and operation of a photovoltaic electricity generation system ("**Facility**") for the benefit of the Customer.

B. After the execution of the SSA, project design reviews and delays in receiving the captive power generation license caused a delay to the start of construction of the Facility. Delays in procurement of the battery energy storage system are expected to further delay the Anticipated Commercial Operation Date.

C. In response to these factors, the Parties have agreed to amend the SSA on the terms set out below.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration under the SSA, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions**. Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA.

2. **Agreement**. Notwithstanding anything to the contrary in the SSA, and with effect from the Effective Date of this Agreement, pursuant to clause 29.2 of the SSA, the Parties hereby acknowledge and agree to amend the SSA as follows:

Clause reference in the SSA	**To be amended to read**
Part 1 – Key Project Terms 'Anticipated Commercial Operation Date' (Right column)	1st May 2022
Part 1 – Key Project Terms 'Commercial Operation Longstop Date' (Right Column)	30 days after the Anticipated Commercial Operation Date. Liability for delays beyond this period will apply for each Party as set forth in ANNEXURE G: DELAYS.
Clause 4.3	In the event that the Facilities, or part thereof generate any electric energy prior to the Commercial Operation Date, Customer is entitled to purchase said energy at the price calculated in ANNEXURE C: PRICING AND PAYMENT TERMS, provided that any purchase, sale and/or delivery of electric energy generated by the Facilities prior to the Commercial Operation Date shall be treated as purchase, sale and/or delivery of test energy only and shall not indicate that the Facilities have been put in commercial operation by the purchase, sale and/or delivery of such test energy.

Annexure G (Second paragraph, first sentence)	If the Commercial Operation Date has not occurred on or before the Commercial Operation Longstop Date (as it may be extended) as a result of System Owner not satisfying one or more of the obligations under this Agreement, then, for each month (or part of a month) from the Commercial Operation Longstop Date until the Commercial Operation Date or the date of termination of the Agreement, System Owner shall be considered to have delivered zero per cent (0%) of the Required Energy Output set forth in ANNEXURE H for the first Operating Year, prorated for the relevant number of days of delay, provided however, that if part of the Facility is operating and producing energy which is available for the Customer to consume, the value of the Required Energy Output delivered shall not be 0%, and shall instead be the actual amount of energy produced by such system for the relevant period.

3. **No Other Modification to SSA**. Other than the amendment and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

4. **Miscellaneous**. This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement and any other relevant provisions of the SSA required to give effect to the intention of the Agreement shall similarly apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a written document signed by all Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitute one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Effective Date.

MIRO FORESTRY SIERRA LEONE LIMITED

By:

Name: Charles Bosworth

Title: Director

Date: 11th November 2021

CROSSBOUNDARY ENERGY SIERRA LEONE LIMITED

By:_____

Name: Matthew Tilleard

Title: Director

Date: ~~29 June 2021~~ 22 November 2021

MIRO FORESTRY DEVELOPMENTS LIMITED

By:

Name: Charles Bosworth

Title: Director

Date: 11th November 2021